

HOUSE No. 3827

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce J. Ayers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolution:

Resolutions urging the Congress of the United States to update the Drug Addiction Treatment Act of 2000 and remove excessive training requirements mandated for obtaining a waiver to prescribe buprenorphine.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>1/15/2025</i>

HOUSE No. 3827

By Representative Ayers of Quincy, a petition (accompanied by resolutions, House, No. 3827) of Bruce J. Ayers for the adoption of resolutions by the General Court memorializing the Congress of the United States to update the Drug Addiction Treatment Act of 2000 and remove excessive training requirements mandated for obtaining a waiver to prescribe buprenorphine. Veterans and Federal Affairs.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3486 OF 2023-2024.]

The Commonwealth of Massachusetts

**In the One Hundred and Ninety-Fourth General Court
(2025-2026)**

Resolutions urging the Congress of the United States to update the Drug Addiction Treatment Act of 2000 and remove excessive training requirements mandated for obtaining a waiver to prescribe buprenorphine.

1 Whereas, since the 1990's the United States of America has experienced a growing issue
2 of the overprescribing of opioid pain relievers; and

3 Whereas, this overprescribing of opioids has led to dependence and addiction to drugs
4 such as heroin and fentanyl, which has resulted in a major public health crisis; and

5 Whereas, in 2017, the United States Department of Health & Human Services declared
6 the opioid crisis a public health emergency; and

7 Whereas, according to 2016 and 2017 data compiled by the Department of Health &
8 Human Services, more than 2.1 million people suffered from an opioid use disorder; and

Whereas, in 2016 and 2017, an estimated 42,249 people died from overdosing on opioids;
and

Whereas, according to the National Institute on Drug Abuse, more than 130 people per
day in the United States die after overdosing on opioids; and

Whereas, national experts say these numbers will only continue to grow; and

Whereas, in order to combat this growing epidemic, new methods of treatment must be
explored; and

Whereas, Medically-Assisted Treatment has proven successful in reducing dependence
on opioids and treating addiction; and

Whereas, buprenorphine is a medication used to treat opiate addiction; and

Whereas, buprenorphine in combination with naxolone (Narcan) is Suboxone, a method
of Medically-Assisted Treatment in the form of a pill taken orally every 24 hours with the
potential to reduce symptoms of opiate addiction and withdrawal; and

Whereas, buprenorphine is a Schedule III drug, meaning it carries “moderate to low
potential for physical and psychological dependence”; and

Whereas, the Drug Addiction Treatment Act of 2000 stipulates that in order to prescribe
buprenorphine, a physician must complete an 8-hour training and take an exam, as well as obtain
a specific “X license” through the DEA; and

Whereas, doctors may prescribe all other Schedule III drugs, as well as some Schedule II
drugs (with a “high potential for abuse, which may lead to psychological or physical

29 dependence”) utilizing their DEA license and without going through any special training or
30 obtaining any separate licenses; and

31 Whereas, the requirements to prescribe buprenorphine are unreasonably stringent with no
32 precedent set in the prescribing of other Schedule III drugs; and

33 Whereas, these unreasonable requirements are a deterrent for physicians to prescribe this
34 potentially life-saving drug; and

35 Whereas, it is incumbent upon Congress to take every measure to treat drug addiction; be
36 it therefore

37 Resolved, that The General Court urges the United States Congress to update the Drug
38 Addiction Treatment Act of 2000 to remove excessive training requirements mandated to
39 prescribe buprenorphine; and be it further

40 Resolved, that copies of these resolutions be forwarded by the Clerk of the House to the
41 Vice-President of the United States, the Speaker of the House of Representatives and the
42 members of the Massachusetts Congressional delegation.